

COURT OF COMMON PLEAS OF PHILADELPHIA COUNTY

DOCKET



Docket Number: CP-51-CR-0002871-2024

CRIMINAL DOCKET

Court Case

Commonwealth of Pennsylvania

v.

John Kellenberger

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CASE INFORMATION

<u>Judge Assigned:</u> Brandeis-Roman, Tracy	<u>Date Filed:</u> 04/19/2024	<u>Initiation Date:</u> 04/19/2024
<u>OTN:</u> U 266001-1	<u>LOTN:</u>	<u>Originating Docket No:</u> MC-51-CR-0019782-2022
<u>Initial Issuing Authority:</u> Colleen M. Osborne	<u>Final Issuing Authority:</u>	
<u>Arresting Agency:</u> Philadelphia Pd	<u>Arresting Officer:</u> Smith, David A.	
<u>Complaint/Citation No.:</u> 2215082046-0019782	<u>Incident Number:</u> 2215082046	
<u>County:</u> Philadelphia	<u>Township:</u> Philadelphia City	
<u>Case Local Number Type(s)</u>	<u>Case Local Number(s)</u>	
Originating Docket Number	MC-51-CR-0019782-2022	
District Control Number	2215082046	
Originating Document Number	2215082046-0019782	

STATUS INFORMATION

<u>Case Status:</u> Active	<u>Status Date</u>	<u>Processing Status</u>	<u>Arrest Date:</u> 11/11/2022
	11/13/2024	Sentenced/Penalty Imposed	
	11/13/2024	Awaiting Sentencing	
	09/03/2024	Awaiting Trial	
	05/01/2024	Awaiting Scheduling Conference	
	04/19/2024	Awaiting Filing of Information	

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CALENDAR EVENTS

<u>Case Calendar</u>	<u>Schedule</u>	<u>Start</u>	<u>Room</u>	<u>Judge Name</u>	<u>Schedule</u>
<u>Event Type</u>	<u>Start Date</u>	<u>Time</u>			<u>Status</u>
Formal Arraignment	05/02/2024	11:00 am	1104		Scheduled
Scheduling Conference	05/22/2024	9:00 am	905	Judge Zachary C. Shaffer	Scheduled
Scheduling Conference	06/12/2024	9:00 am	908	Judge Tracy Brandeis-Roman	Scheduled
Motions Hearing	08/21/2024	9:00 am	908	Judge Tracy Brandeis-Roman	Continued
Motions Hearing	09/03/2024	9:00 am	908	Judge Tracy Brandeis-Roman	Scheduled
Add-On/Psychiatric Evaluation	09/30/2024	11:00 am	Mental Health Clinic		Scheduled
Status	10/30/2024	9:00 am	908	Judge Tracy Brandeis-Roman	Scheduled
Waiver Trial	11/12/2024	9:00 am	908	Judge Tracy Brandeis-Roman	Scheduled
Status	11/13/2024	9:00 am	908	Judge Tracy Brandeis-Roman	Scheduled
Status Listing	12/04/2024	9:00 am	908	Judge Tracy Brandeis-Roman	Scheduled
Status	01/21/2025	9:00 am	908	Judge Tracy Brandeis-Roman	Scheduled
Status	03/27/2025	9:00 am	908	Judge Tracy Brandeis-Roman	Scheduled
Status	04/30/2025	9:00 am	908	Judge Tracy Brandeis-Roman	Scheduled
Status	06/17/2025	9:00 am	908	Judge Tracy Brandeis-Roman	Continued
Status	07/15/2025	9:00 am	908	Judge Tracy Brandeis-Roman	Scheduled
Motions Hearing	08/14/2025	9:00 am	908	Judge Tracy Brandeis-Roman	Scheduled
Status Listing	02/05/2026	9:00 am	908	Judge Tracy Brandeis-Roman	Continued
Status Listing	02/24/2026	9:00 am	908	Judge Tracy Brandeis-Roman	Scheduled
Violation of Probation	05/22/2026	9:00 am	908	Judge Tracy Brandeis-Roman	Continued
Violation of Probation	05/27/2026	9:00 am	908	Judge Tracy Brandeis-Roman	Scheduled
Bench Warrant Hearing	05/29/2026	9:00 am	908	Judge Tracy Brandeis-Roman	Scheduled
Violation of Probation	06/04/2026	9:00 am	908	Judge Tracy Brandeis-Roman	Scheduled

DEFENDANT INFORMATION

Date Of Birth: 07/04/1969 City/State/Zip:

CASE PARTICIPANTS

<u>Participant Type</u>	<u>Name</u>
Probation Officer	Dancy, Daryl
Defendant	Kellenberger, John

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BAIL INFORMATION

Kellenberger, John

Nebbia Status: None

<u>Bail Action</u>	<u>Date</u>	<u>Bail Type</u>	<u>Originating Court</u>	<u>Percentage</u>	<u>Amount</u>
Set	04/19/2024	Monetary	Common Pleas	10.00%	\$50,000.00

CHARGES

<u>Seq.</u>	<u>Orig Seq.</u>	<u>Grade</u>	<u>Statute</u>	<u>Statute Description</u>	<u>Offense Dt.</u>	<u>OTN</u>
1	1	F2	18 § 2702 §§ A4	Aggravated Assault - Attempts to cause or causes BI with deadly weapon	11/11/2022	U 266001-1
2	2	F2	18 § 3503 §§ A1II	Crim Tres-Break Into Structure	11/11/2022	U 266001-1
8	10	H1	18 § 901 §§ A	Criminal Attempt - Murder	11/11/2022	U 266001-1

DISPOSITION SENTENCING/PENALTIES

Disposition

<u>Case Event</u>	<u>Disposition Date</u>	<u>Final Disposition</u>
<u>Sequence/Description</u>	<u>Offense Disposition</u>	<u>Grade Section</u>
<u>Sentencing Judge</u>	<u>Sentence Date</u>	<u>Credit For Time Served</u>
<u>Sentence/Diversion Program Type</u>	<u>Incarceration/Diversionary Period</u>	<u>Start Date</u>
<u>Sentence Conditions</u>		

Lower Court Proceeding (generic)

Preliminary Hearing	04/18/2024	Not Final
1 / Aggravated Assault - Attempts to cause or causes BI with deadly weapon	Held for Court	F2 18 § 2702 §§ A4
2 / Crim Tres-Break Into Structure	Held for Court	F2 18 § 3503 §§ A1II
8 / Criminal Attempt - Murder	Held for Court	H1 18 § 901 §§ A

Proceed to Court Defendant Was Not Present

Information Filed	05/08/2024	Not Final
1 / Aggravated Assault - Attempts to cause or causes BI with deadly weapon	Proceed to Court	F2 18 § 2702 §§ A4
2 / Crim Tres-Break Into Structure	Proceed to Court	F2 18 § 3503 §§ A1II
8 / Criminal Attempt - Murder	Proceed to Court	H1 18 § 901 §§ A

Proceed to Court

Motions Hearing	09/03/2024	Not Final
1 / Aggravated Assault - Attempts to cause or causes BI with deadly weapon	Proceed to Court	F2 18 § 2702 §§ A4
2 / Crim Tres-Break Into Structure	Proceed to Court	F2 18 § 3503 §§ A1II
8 / Criminal Attempt - Murder	Quashed	H1 18 § 901 §§ A

Guilty Plea - Negotiated

Status	11/13/2024	Final Disposition
1 / Aggravated Assault - Attempts to cause or causes BI with deadly weapon	Guilty Plea - Negotiated	F2 18 § 2702 §§ A4
Brandeis-Roman, Tracy	11/13/2024	

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DISPOSITION SENTENCING/PENALTIES

Disposition

<u>Case Event</u>	<u>Disposition Date</u>	<u>Final Disposition</u>
<u>Sequence/Description</u>	<u>Offense Disposition</u>	<u>Grade</u> <u>Section</u>
<u>Sentencing Judge</u>	<u>Sentence Date</u>	<u>Credit For Time Served</u>
<u>Sentence/Diversion Program Type</u>	<u>Incarceration/Diversionary Period</u>	<u>Start Date</u>
<u>Sentence Conditions</u>		
Confinement	Min of 11.00 Months 15.00 Days Max of 23.00 Months 11 1/2 - 23 months	11/13/2024
Defendant sentenced to 11.5 to 23 months incarceration with immediate parole followed by 3 years reporting probation to be supervised by the mental health unit. Credit for Time Served from 11/11/2022.		
Stay away order imposed as a condition of supervision.		
Probation	Max of 3.00 Years 3 years	
2 / Crim Tres-Break Into Structure	Guilty Plea - Negotiated	F2 18 § 3503 §§ A1II
Brandeis-Roman, Tracy	11/13/2024	
Confinement	Min of 11.00 Months 15.00 Days Max of 23.00 Months 11 1/2 - 23 months	11/13/2024
Defendant sentenced to 11.5 to 23 months incarceration with immediate parole followed by 3 years reporting probation to be supervised by the mental health unit. Credit for Time Served from 11/11/2022.		
Stay away order imposed as a condition of supervision.		
Probation	Max of 3.00 Years 3 years	
8 / Criminal Attempt - Murder	Quashed	H1 18 § 901 §§ A
Brandeis-Roman, Tracy	11/13/2024	

LINKED SENTENCES:

Link 3

- Link 1 is Concurrent with
- Link 2

Link 1

CP-51-CR-0002871-2024 - Seq. No. 1 (18 § 2702 §§ A4) - Probation is Consecutive to
CP-51-CR-0002871-2024 - Seq. No. 1 (18 § 2702 §§ A4) - Confinement

Link 2

CP-51-CR-0002871-2024 - Seq. No. 2 (18 § 3503 §§ A1II) - Probation is Consecutive to
CP-51-CR-0002871-2024 - Seq. No. 2 (18 § 3503 §§ A1II) - Confinement

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COMMONWEALTH INFORMATION

Name: Philadelphia County District Attorney's
Office
District Attorney

Supreme Court No:

Phone Number(s):
215-686-8000 (Phone)

Address:
3 South Penn Square
Philadelphia, PA 19107

ATTORNEY INFORMATION

Name: Defender Association of
Philadelphia
Public Defender

Supreme Court No:

Rep. Status: Active

Phone Number(s):

Address:

ENTRIES

<u>Sequence Number</u>	<u>CP Filed Date</u>	<u>Document Date</u>	<u>Filed By</u>
1	04/19/2024		Court of Common Pleas - Philadelphia County
Held for Court			
3	04/19/2024		Osborne, Colleen M.
Bail Set - Kellenberger, John			
1	05/03/2024		Defender Association of Philadelphia
Motion to Quash			
1	05/08/2024		Krasner, Larry
Information Filed			
2	05/22/2024		Shaffer, Zachary C.
Pre-Trial Conference Held			
3	06/12/2024		Court of Common Pleas - Philadelphia County
Hearing Notice			
6	06/12/2024		Court of Common Pleas - Philadelphia County
Hearing Notice			
7	06/12/2024		Brandeis-Roman, Tracy
Scheduling Conference Held			
4	08/21/2024		Court of Common Pleas - Philadelphia County
Hearing Notice			

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<u>Sequence Number</u>	<u>CP Filed Date</u>	<u>Document Date</u>	<u>Filed By</u>
5	08/21/2024		Brandeis-Roman, Tracy
Commonwealth Request For Continuance Specially Assigned ADA/Unavailable			
3	09/03/2024		Court of Common Pleas - Philadelphia County
Hearing Notice			
4	09/03/2024		Brandeis-Roman, Tracy
Trial Date to Remain			
5	09/03/2024		Brandeis-Roman, Tracy
Information Filed			
6	09/03/2024		Court of Common Pleas - Philadelphia County
Order -- Trial Disposition			
7	09/03/2024		Brandeis-Roman, Tracy
Order Granting Motion to Quash			
1	10/30/2024		Brandeis-Roman, Tracy
Trial Date to Remain			
2	10/30/2024		Court of Common Pleas - Philadelphia County
Short Certificate			
Philadelphia County Sheriff's Office			
10/30/2024			
Philadelphia Department of Prisons			
10/30/2024			
1	11/12/2024		Brandeis-Roman, Tracy
Order Granting Motion for Continuance			
4	11/12/2024		Court of Common Pleas - Philadelphia County
Hearing Notice			
1	11/13/2024		Brandeis-Roman, Tracy
Guilty Plea - Negotiated			

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2	11/13/2024		Brandeis-Roman, Tracy
Order - Sentence/Penalty Imposed			
6	11/13/2024		Court of Common Pleas - Philadelphia County
Hearing Notice			
7	11/13/2024		Court of Common Pleas - Philadelphia County
Penalty Assessed			
8	11/13/2024		Court of Common Pleas - Philadelphia County
Release of Prisoner Philadelphia Department of Prisons 11/13/2024			
9	11/13/2024		Court of Common Pleas - Philadelphia County
Court Commitment State or County Correctional Institution Philadelphia Department of Prisons 11/13/2024			
1	11/25/2024		Philadelphia County Adult Probation Unit
Gagnon 2 Summary Filed			
2	12/04/2024		Court of Common Pleas - Philadelphia County
Hearing Notice			
2	12/04/2024		Brandeis-Roman, Tracy
Status Listing			
1	12/05/2024		Brandeis-Roman, Tracy
Corrective Docket Entry			
4	12/05/2024		Court of Common Pleas - Philadelphia County
Hearing Notice			

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1	12/11/2024		Philadelphia County Adult Probation Unit
Gagnon 2 Summary Filed			
2	12/11/2024		Philadelphia County Adult Probation Unit
Gagnon 2 Summary Filed			
1	01/14/2025		Philadelphia County Office of Judicial Records
Entry of Civil Judgment			
1	01/15/2025		Philadelphia County Adult Probation Unit
Gagnon 2 Summary Filed			
1	01/21/2025		Brandeis-Roman, Tracy
Status Listing			
4	01/21/2025		Court of Common Pleas - Philadelphia County
Hearing Notice			
5	01/21/2025		Brandeis-Roman, Tracy Court of Common Pleas - Philadelphia County
Order Granting Petition for Writ of Habeas Corpus Philadelphia County Sheriff's Office 01/21/2025			
1	03/19/2025		Philadelphia County Adult Probation Unit
Gagnon 2 Summary Filed			
3	03/27/2025		Court of Common Pleas - Philadelphia County
Hearing Notice			
4	03/27/2025		Brandeis-Roman, Tracy
VOP Continued To Date Certain			

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<u>Sequence Number</u>	<u>CP Filed Date</u>	<u>Document Date</u>	<u>Filed By</u>
1	04/23/2025		Philadelphia County Adult Probation Unit
Gagnon 2 Summary Filed			
3	04/30/2025		Court of Common Pleas - Philadelphia County
Hearing Notice			
4	04/30/2025		Brandeis-Roman, Tracy
Status Listing			
1	06/10/2025		Philadelphia County Adult Probation Unit
Gagnon 2 Summary Filed			
1	06/17/2025		Brandeis-Roman, Tracy
VOP Continued To Date Certain			
1	07/09/2025		Philadelphia County Adult Probation Unit
Gagnon 2 Summary Filed			
3	07/15/2025		Court of Common Pleas - Philadelphia County
Hearing Notice			
4	07/15/2025		Court of Common Pleas - Philadelphia County
Order Granting Petition for Writ of Habeas Corpus			
5	07/15/2025		Brandeis-Roman, Tracy Bryant-Powell, Crystal
Defense Request For Continuance For Further Investigation			
1	08/07/2025		Philadelphia County Adult Probation Unit
Gagnon 2 Summary Filed			
1	08/14/2025		Brandeis-Roman, Tracy
Status Listing			

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<u>Sequence Number</u>	<u>CP Filed Date</u>	<u>Document Date</u>	<u>Filed By</u>
1	02/03/2026		Philadelphia County Adult Probation Unit
Gagnon 2 Summary Filed			
4	02/03/2026		Court of Common Pleas - Philadelphia County
Hearing Notice			
1	02/05/2026		Brandeis-Roman, Tracy
Defense Advance Request For Continuance			
5	02/05/2026		Court of Common Pleas - Philadelphia County
Hearing Notice			
1	02/17/2026		Philadelphia County Adult Probation Unit
Gagnon 2 Summary Filed			
1	02/24/2026		Brandeis-Roman, Tracy
Order Granting Motion to Continue Probation			
2	02/24/2026		Brandeis-Roman, Tracy
Order Granting Motion to Continue Probation			
APPD Parole Probation Intake			
02/24/2026			
3	05/07/2026		Court of Common Pleas - Philadelphia County
Hearing Notice			
1	05/13/2026		Philadelphia County Adult Probation Unit
Gagnon 2 Summary Filed			
1	05/22/2026		Philadelphia County Adult Probation Unit
Gagnon 2 Summary Filed			
2	05/22/2026		Brandeis-Roman, Tracy
VOP Continued To Date Certain			

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<u>Sequence Number</u>	<u>CP Filed Date</u>	<u>Document Date</u>	<u>Filed By</u>
6	05/22/2026		Court of Common Pleas - Philadelphia County
Hearing Notice			
3	05/29/2026		Court of Common Pleas - Philadelphia County
Hearing Notice			
6	05/29/2026		Court of Common Pleas - Philadelphia County
Hearing Notice			
7	05/29/2026		Court of Common Pleas - Philadelphia County
Hearing Notice			
1	06/01/2026		Philadelphia County Adult Probation Unit
Gagnon 2 Summary Filed			

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CASE FINANCIAL INFORMATION

Last Payment Date:

Total of Last Payment:

Kellenberger, John Defendant	<u>Assessment</u>	<u>Payments</u>	<u>Adjustments</u>	<u>Non Monetary Payments</u>	<u>Balance</u>
Costs/Fees					
ATJ	\$6.00	\$0.00	\$0.00	\$0.00	\$6.00
Booking Center Fee (Philadelphia)	\$175.00	\$0.00	\$0.00	\$0.00	\$175.00
CJES	\$2.50	\$0.00	\$0.00	\$0.00	\$2.50
CQS Fee Felony (Philadelphia)	\$100.00	\$0.00	\$0.00	\$0.00	\$100.00
Commonwealth Cost - HB627 (Act 167 of 1992)	\$25.90	\$0.00	\$0.00	\$0.00	\$25.90
Costs of Prosecution - CJEA	\$50.00	\$0.00	\$0.00	\$0.00	\$50.00
County Court Cost (Act 204 of 1976)	\$37.80	\$0.00	\$0.00	\$0.00	\$37.80
Crime Victim Services and Compensation (Act 77 of 1988)	\$60.00	\$0.00	\$0.00	\$0.00	\$60.00
DNA Detection Fund (Act 185-2004)	\$250.00	\$0.00	\$0.00	\$0.00	\$250.00
Domestic Violence Compensation (Act 44 of 1988)	\$10.00	\$0.00	\$0.00	\$0.00	\$10.00
Firearm Education and Training Fund	\$5.00	\$0.00	\$0.00	\$0.00	\$5.00
JCPS	\$21.25	\$0.00	\$0.00	\$0.00	\$21.25
Judicial Computer Project	\$8.00	\$0.00	\$0.00	\$0.00	\$8.00
OAG - JCP	\$2.50	\$0.00	\$0.00	\$0.00	\$2.50
State Court Costs (Act 204 of 1976)	\$17.30	\$0.00	\$0.00	\$0.00	\$17.30
ATJ	\$6.00	\$0.00	\$0.00	\$0.00	\$6.00
Booking Center Fee (Philadelphia)	\$175.00	\$0.00	\$0.00	\$0.00	\$175.00
CJES	\$2.50	\$0.00	\$0.00	\$0.00	\$2.50
CQS Fee Felony (Philadelphia)	\$100.00	\$0.00	\$0.00	\$0.00	\$100.00
Commonwealth Cost - HB627 (Act 167 of 1992)	\$25.90	\$0.00	\$0.00	\$0.00	\$25.90
Costs of Prosecution - CJEA	\$50.00	\$0.00	\$0.00	\$0.00	\$50.00
County Court Cost (Act 204 of 1976)	\$37.80	\$0.00	\$0.00	\$0.00	\$37.80
Crime Victim Services and Compensation (Act 77 of 1988)	\$60.00	\$0.00	\$0.00	\$0.00	\$60.00
DNA Detection Fund (Act 185-2004)	\$250.00	\$0.00	\$0.00	\$0.00	\$250.00
Domestic Violence Compensation (Act 44 of 1988)	\$10.00	\$0.00	\$0.00	\$0.00	\$10.00
Firearm Education and Training Fund	\$5.00	\$0.00	\$0.00	\$0.00	\$5.00
JCPS	\$21.25	\$0.00	\$0.00	\$0.00	\$21.25
Judicial Computer Project	\$8.00	\$0.00	\$0.00	\$0.00	\$8.00
OAG - JCP	\$2.50	\$0.00	\$0.00	\$0.00	\$2.50

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Kellenberger, John Defendant	<u>Assessment</u>	<u>Payments</u>	<u>Adjustments</u>	<u>Non Monetary</u> <u>Payments</u>	<u>Balance</u>
State Court Costs (Act 204 of 1976)	\$17.30	\$0.00	\$0.00	\$0.00	\$17.30
OSP (Philadelphia) (Act 77 of 2022)	\$1,125.00	\$0.00	\$0.00	\$0.00	\$1,125.00
Civil Judgment/Lien (Philadelphia)	\$100.69	\$0.00	\$0.00	\$0.00	\$100.69
Costs/Fees Totals:	\$2,768.19	\$0.00	\$0.00	\$0.00	\$2,768.19
Grand Totals:	\$2,768.19	\$0.00	\$0.00	\$0.00	\$2,768.19

** - Indicates assessment is subrogated